

Tentative Rulings and Resolution Review Hearings

September 28, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

BERG VS. GRIFFIN

CASE NUMBER: 25CV-0208647

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on August 21 2026 to Plaintiff Adam Berg and counsel Legal Needs, APC for failure to appear on August 10, 2026 and failure to provide Defendant with notice of the August 10, 2026 hearing date as ordered on July 13, 2026. Counsel for Plaintiff was present on July 13, 2026 when the Court discharged a previous Order to Show Cause, set the August 10, 2026 hearing date, and ordered Plaintiff to provide notice to Defendant. Plaintiff did not file a Notice of Hearing and no appearances were made on August 10, 2026. Plaintiff did not file a written response to the Order to Show Cause. With no sufficient excuse for failing to appear and failing to provide notice to Defendant, sanctions are imposed against Plaintiff and counsel in the amount of \$250. The clerk is directed to prepare the Order of Sanctions.

CAMBLIN VS. MOBILEONE, LLC, AN ARIZONA CORPORATION

CASE NUMBER: 26CV-0209779

Tentative Ruling on Motion to Enforce Settlement: Defendant MobileOne, LLC seeks enforcement of a settlement agreement between Plaintiff Joshua C. Camblin and Defendant. Despite being properly noticed, Plaintiff did not file an Opposition. The motion is based on a settlement agreement signed by Plaintiff and Defendant. Defendant has provided evidence that Plaintiff was contacted directly by a private investigator hired by Defendant who negotiated the settlement, which Plaintiff signed without his counsel.

“In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer.” Rule 4.2(a). Comment 3 reads as follows:

The prohibition against communicating “indirectly” with a person* represented by counsel in paragraph (a) is intended to address situations where a lawyer seeks to communicate with a represented person* through an intermediary such as an agent, investigator or the lawyer’s client. This rule, however, does not prevent represented persons* from communicating directly with one another with respect to the subject of the representation, nor does it prohibit a lawyer from advising a client concerning such a communication. A lawyer may also advise a client not to accept or engage in such communications. The rule also does not prohibit a lawyer who is a party to a legal matter from communicating on his or her own behalf with a represented person* in that matter.

The declarations provided by counsel and Mr. Ford are silent as to whether the contact with Plaintiff was made at direction of counsel or if Mr. Ford initiated contact on his own then informed counsel after the fact.

The Court notes that there is another case between the parties, *Camblin vs. MobileOne, LLC*, 207920 which is a wage and hour class action. In that matter, Defendant has filed a motion based on the same settlement agreement which is noticed for October 5, 2026 in Department 64. Dismissal of a party from a class action requires court approval. CRC 3.770. Additionally, the Court notes that § 6.1 of the agreement includes a representation by the Parties that no other cases between the two parties have been filed. As 207920 was already pending, this representation was clearly false.

Due to issues noted above, the Court will need further briefing and evidence in order to rule on the merits of the motion. Because the same agreement is being used to seek dismissal in both cases, the Court intends to issue an Order of Reassignment assigning 207920 to Department 63 so that the matters can be heard together. The Court requires appearance of both counsel at today’s hearing to discuss the issues noted above and select a future hearing date. **An appearance by both parties is necessary on today’s calendar.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: Plaintiffs Steven Garrigus and Kyren Cannaday brought this wage and hour class action and Private Attorneys General Act (“PAGA”) matter against Defendant Blach Beverage, LLC. The Second Amended Complaint filed April 15, 2026 is the operative pleading. The parties have settled the matter for a total of \$211,925.00 and seek preliminary approval by the Court.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Neary v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other grounds). However, courts cannot automatically and instantly approve a proposed settlement or dismiss a class action suit, even if the representative plaintiff and defendant have agreed on the terms of such settlement or

dismissal. In a class action, the trial court has a duty to adequately protect the members of the class. *Bingham v. Obledo* (1983) 147 Cal. App. 3d 401, 406. Courts have long recognized that a class action may deprive an absent class member of the opportunity to independently press their claim, preclude a defendant from defending each individual claim to its fullest, and even deprive a litigant of a constitutional right. As such, a settlement or compromise of an entire class action, or a cause of action in a class action, or as to a party, requires the approval of the court after hearing. CRC 3.769(a). This takes two steps: (1) a preliminary review by the trial court, and (2) a final review after notice has been distributed to the class members.

The fundamental question for a preliminary review is whether the settlement is fair, adequate and reasonable. The purpose of this requirement is the protection of those class members, including the named plaintiffs, whose rights may not have been given due regard by the negotiating parties. *Dunk v. Ford Motor Co.* (1996) 48 Cal. App. 4th 1794, 1801. The trial court has broad discretion to determine whether the settlement is fair. It should consider relevant factors, such as: (1) the strength of plaintiff's case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exhaustive and should be tailored to each case. *Id.*

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 225 (disapproved on other grounds by *Hernandez v. Restoration Hardware* (2018) 4 Cal. 5th 260).

Class Certification and Approval of Class Representative. A class action may be maintained "when the question is one of common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court." CCP § 382. "The 'community of interest' requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." *Gattuso v. Harte-Hanks Shoppers, Inc.* (2007) 42 Cal. 4th 554, 575. The Class consists of all current and former non-exempt employees who worked for Defendant in California at any time during the Class Period. The Class Period is December 27, 2020 through May 3, 2026. The PAGA period is December 21, 2023 through May 3, 2026.

Here, there appears to be a community of interest. There are common questions of law and fact because the proposed class members all worked for the same employer and were subject to the same employment practices and policies and same wage and hour laws. The class was readily identified through employment records and stands currently at approximately 133 individuals.

The class members have two representatives who appear to be similarly situated as former employees of Defendant during the class period and within the class member designation. Counsel has provided evidence that there are no conflicts and Plaintiffs' claims are typical of the class. The Court certifies the class for the purpose of settlement and confirms Steven Garrigus and Kyren Cannaday as the class representatives.

Approval of Class Counsel. Plaintiffs' counsel have demonstrated their experience and familiarity with class action cases, including employment and wage-and-hour disputes. Counsel has provided evidence that the firm is well versed in class actions, particularly of this nature, and has the competence to be appointed as Class Counsel. The Court appoints Tiago M. Coelho, Jennifer M. Leinbach, Lauren M. Lendzion, and Giancarlo A. Recinos of Wilshire Law Firm, PLC as Class Counsel.

Approval of Settlement Administrator. Phoenix Class Action Administration is proposed as the settlement

administrator. While no evidence of Phoenix Class Action Administration's qualifications was provided, the Court is familiar with this settlement administrator and confirms appointment.

Fairness of Settlement and Plan of Allocation. Preliminary approval of a class action settlement constitutes a conditional finding that the settlement appears to be in the range of acceptable settlements. The Court has broad discretion to determine whether the settlement is fair. *Dunk v. Ford Motor Company*, *supra*, 48 Cal. App. 4th at 1801. As noted above, factors relevant to the court's determination include, but are not limited to, the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, and the experience and views of counsel. *Id.* There is a presumption of fairness where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; and (3) counsel is experienced in similar litigation. *Id.* at 1802.

The settlement here was the result of arm's-length bargaining and mediation with an experienced mediator. Plaintiffs' counsel declared that the parties have exchanged extensive discovery and expert review of timekeeping records and other records of Defendant's allowed both parties to adequately analyze the claims. The Declaration of Thiago M. Coelho provides analysis of each claim that included the maximum exposure, discounts applied, and the realistic exposure. The class settlement is just 16.3% less than the estimated reasonable maximum recovery and avoids the added costs of litigation to certify the class and to try the matter. It also avoids the possibility that putative class members will have no recovery at all. The Court finds the settlement of \$211,925.00 to be fair, adequate, and reasonable.

Within the settlement, various fees and costs are apportioned prior to the net settlement amount, which is distributed to class members. The overall proposed breakdown of the settlement is as follows:

Total Settlement Amount	\$211,925.00
Proposed Attorneys' Fees (up to 33 1/3%)	-\$70,641.67
Litigation Costs and Expenses (up to)	-\$25,000.00
Settlement Administration Costs (up to)	-\$6,250.00 ¹
Proposed Class Representative Enhancements (up to \$10,000 each)	-\$20,000.00
PAGA Claim Settlement Allocation	\$20,000.00
Payment to Labor and Workforce Development Agency (LWDA) (65%)	(-\$13,000.00)
Payment to Class Members (35%)	(\$7,000.00)
Net Settlement to be Disbursed to Class Members/Aggrieved Employees	\$77,033.33

Attorneys' Fees and Costs: Counsel seeks up to 33 1/3% in attorneys' fees and up to \$25,000.00 in litigation costs. Counsel has provided evidence of their expertise in the area, the risk of taking the case given that no payment is provided until settlement, and efforts put forth to prosecute the case. The Court will not approve the amount of attorneys' fees until the final approval hearing. The court cannot award attorneys' fees without reviewing information about counsel's hourly rate and the time spent on the case. This is the law even if the parties have agreed to the fees. *Robbins v. Alibrandi* (2005) 127 Cal. App. 4th 438, 450-451. At the time of the final approval hearing, the Court will review the evidence provided by Class Counsel. In addition to the hourly rate and hours spent on the case, Class Counsel should provide admissible evidence supporting the hourly fee requested including, if applicable, whether Class Counsel charges fee-paying clients the same rates. The Court will likewise not approve final costs until the final hearing as that is when Counsel can provide evidence of the specific costs incurred as part of this litigation.

¹ The Court notes that the settlement administration costs are listed as \$7,000 in the Class Notice. The Court takes no issue with this, given the escalator clause.

Enhancement Award: The settlement provides for an enhancement award of \$10,000.00 to each of the named Plaintiffs as Class Representatives. The Court will not approve the amount of the enhancement award until the final approval hearing. With the final approval motion, Plaintiffs should provide admissible evidence to support the request, e.g. the number of hours of service provided, the nature of the work performed, the risks Plaintiffs faced in prosecuting this lawsuit, including any actual retaliation, and/or other evidence demonstrating the need for an incentive payment. See *Clark v. American Residential Services, LLC* (2009) 175 Cal. App. 4th 785, 804-807. Plaintiffs should also provide information regarding how the proposed service award relates to Plaintiffs' anticipated individual settlement awards and the average expected individual settlement awards for class members.

Settlement Administration Costs: Settlement administration costs have been requested in an amount up to \$6,250.00. The Court will not approve the amount of the costs awarded to the settlement administrator until the final approval hearing. An invoice from Phoenix showing the actual costs incurred will need to be filed for the final approval hearing. If there is a possibility that settlement administration costs may be higher than \$7,000, the dollar amount attributed this needs to be increased in the Class Notice. It is Plaintiff's obligation to raise this issue at the hearing should there be a possibility of more than \$7,000 in settlement administration costs.

The Court notes that the § 1.12 of the Settlement Agreement includes Spanish translation, however, no Spanish version was provided and there is no line item in Phoenix's invoice that would cover Spanish translation. The Court expects counsel to address this at the hearing as the settlement administration costs provided in the Class Notice need to be accurate.

PAGA: Under the Private Attorney General Act, private parties can assert claims for penalties that otherwise can be recovered only by the Labor and Workforce Development Agency ("LWDA"). Labor Code 2699(a). See also *Dunlap v. Superior Court* (2006) 142 Cal. App. 4th 330, 336. An employee who, through the PAGA, asserts a claim for civil penalties on behalf of the LWDA is acting as an agent of the LWDA. This is evident from the requirement that before initiating a PAGA claim, an employee must provide notice to the LWDA per Labor Code 2699.3(a), and the requirement that that 65% of any recovered civil penalties must be distributed to the LWDA, Labor Code 2699(i). In settling the LWDA's claims, Class Counsel are settling and releasing claims for penalties that belong to the People of the State of California acting through the LWDA. A settlement of LWDA claims should, therefore, provide a reasonable benefit to the state for the settlement of the released claims. The reasonable benefit may be based on the potential value of the recoverable civil penalties discounted by the risk and expense of litigation. In *Nordstrom Com' Cases* (2010) 186 Cal. App. 4th 576, 589, the Court of Appeal held that the Court can approve a settlement even when no money is allocated to the PAGA claims. The Declaration of Thiago M. Coelho provides evidence that the LWDA was notified of the settlement prior to the motion being filed and how the PAGA portion of the settlement was determined. The Court notes that no objection was received from the LWDA. The Court finds that the \$20,000 PAGA portion of the settlement is reasonable and confers a substantial benefit on both the State of California and aggrieved employees.

Notice and Notice Procedure. Plaintiff requests approval of Class Notice attached as Exhibit A to Exhibit 2 contained in the Declaration of Thiago M. Coelho. If a class notice is to be effective, "members of the class must receive the best notice practicable under the circumstances, including individual notice to all members who can be identified through reasonable effort." *Home Sav. & Loan Ass'n v. Sup. Ct.* (1975) 42 Cal. App. 3d 1006, 1012, citing Fed. R. Civ. P. 23(b)(2). The standard in California is whether the notice "has a reasonable chance of reaching a substantial percentage of class members." *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 251. The Court notes the following issues with the Class Notice that will need to be corrected prior to mailing:

- § 12 – the deadline needs to be increased from 45 to 60 days
- § 13 – the deadline needs to be increased from 45 to 60 days
- § 15 – Giancarlo A. Recinos needs to be listed as Class Counsel

- § 17 – the deadline needs to be increased from 45 to 60 days

Following the changes noted above, the Class Notice is approved for mailing in the manner described in the Settlement Agreement, which may include Spanish translation. As noted above, Spanish translation was not included a line item in the invoice provided by Phoenix. Prior to granting the motion, Plaintiffs' counsel must inform the Court if it is reasonably anticipated that any class member is Spanish speaking only. If so, the Class Notice will need to be sent in English and Spanish, which the Court anticipates may increase settlement administration costs to over the \$7,000 listed in the Class Notice.

Assuming the issue regarding Spanish translation can be resolved at the hearing, the Court intends to **GRANT** the motion. Based on the timeline, it appears that a Final Approval Hearing on **Monday, March 1, 2027 at 8:30 a.m. in Department 63** would provide sufficient time. Absent a request for a different date, the Court will calendar the Final Approval Hearing as noted. Plaintiff submitted a proposed Order that will be modified to reflect the Court's ruling.

J.G. WENTWORTH ORIGINATIONS, LLC VS. JUSTICE

CASE NUMBER: 26CV-0211558

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor Heather Justice has agreed to transfer 17 annual payments (December 1, 2027 – December 1, 2043) of \$3,500 each and 198 monthly payments (December 1, 2027 – May 1, 2044) of \$150 in exchange for \$22,000.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that "Interested parties" means, with respect to a structured settlement agreement, the payee, the payee's attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee's death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is "fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Section 10137(a).

Ms. Justice has presented evidence that she is experiencing financial hardship and intends to use the funds to pay medical and credit card debt. The annuity is from a 2024 personal injury settlement and was not intended for future medical care or living expenses. Ms. Justice has no minor children and no support obligations. Ms. Justice is unemployed and currently receives \$500 per month from her annuity. The only other income listed by Ms. Justice is her husband's \$1,175 per month disability payment. Ms. Justice has completed three previous transfers since her annuity payments started in December 2024. Her Declaration indicates that she understands the terms of the transaction, although she has not sought independent legal or financial advice.

The Court is concerned that this is the fourth transaction in the past two years. The Court is also concerned that Ms. Justice is reducing her monthly income to \$350 and that her only other source of income is her husband's disability payment. Based on the information presently before the Court, the Court is unable to find that the transfer to be fair, reasonable, and in Ms. Justice's best interest based on the factors set forth in Ins. Code § 10139.5(b). The Court will need further information and intends to voir dire Ms. Justice. In order to proceed with this Petition, Ms. Justice will need to appear. **An appearance by Ms. Justice and counsel for Petitioner is required on today's calendar.**

JEFFERSON CAPITAL SYSTEMS, LLC VS. PATRICK

CASE NUMBER: 26CVG-00566

Tentative Ruling on Motion to Compel Arbitration: Defendant Shawn A. Patrick moves to compel arbitration on the Complaint filed by Plaintiff Jefferson Capital Systems, LLC. There is no proof of service indicating the motion was served on Plaintiff and no Opposition has been filed. Without notice to Plaintiff, the motion is **DENIED** without prejudice. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: KINSELLA

CASE NUMBER: 26CV-0211215

Tentative Ruling on Petition for Change of Name: Petitioner Vera Anne Kinsella aka Megan Anne McAllister seeks to change her name to Megan Anne McAllister. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien, attorneys who are licensed and reside in Minnesota and New York, respectively, seek admission pro hac vice in order to represent Defendant Medtronic, Inc. in this matter. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Applications are verified and contain all the information required by Rule 9.40(d). The Court finds that the Applications have been properly noticed and that the fee was paid to the State Bar for each applicant. The Applications are **GRANTED** and the Court will execute the proposed Orders.

IN RE: LANE

CASE NUMBER: 26CV-0211208

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Additionally, proof of publication is required before the Court can consider granting

the Petition. Proof of service of a notice of hearing or order to show cause on the father has not been submitted, nor has proof of publication. Unless proof of timely service on the father, as well as proof of publication, is submitted at hearing, the Court intends to the Petition and close the file.

MALINOVSKY VS. CROSBY, ET AL.

CASE NUMBER: 26CV-0211172

Tentative Ruling on Demurrer: Defendants Shasta Union High School District, Owen Crosby, Jason Rubin, and Heath Bunton demur to each cause of action alleged in the First Amended Complaint (FAC) filed by Plaintiff Joseph L. Malinovsky on July 10, 2026. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ross Nott provides evidence of sufficient efforts to meet and confer.

Request for Judicial Notice. Defendant request the Court take judicial notice of the Government Tort Claim filed by Plaintiff on or about December 16, 2025 pursuant to Evid. Code §§ 451, 452, and 453. The request is granted.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The FAC alleges three causes of action – Intentional Infliction of Emotional Distress (IIED), Negligent Infliction of Emotional Distress (NIED), and Violation of a Mandatory Duty. Defendants demur to each under several theories.

Duty. Defendants allege that Plaintiff lacks the special relationship to give rise to duty, which is required for a negligence claim.

There is no independent tort of negligent infliction of emotional distress; rather, “[t]he tort is negligence, a cause of action in which a duty to the plaintiff is an essential element.” (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) “That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.”

Ragland vs. U.S. Bank National Assn. (2012) 209 Cal. App. 4th 182, 205.

Plaintiff alleged that being allowed on campus in order to provide services to a different student gave rise to a duty, however, this argument was abandoned in the Reply. The other theory of duty raised is based on Plaintiff’s minor child being a student of SUHSD. While school districts have a duty to students who are supervised by district staff and required to be on campus, that duty does not generally extend to parents. *Steven F. v. Anaheim Union High School District* (2003) 112 Cal 4th 904. Because there is no duty owed to Plaintiff himself, as opposed to his minor child who was a student at the school, claims sounding in negligence cannot stand and the Demurrer on this ground as to the Second Cause of Action is **SUSTAINED**. Plaintiff has not shown that any fact could correct the defect, therefore, leave to amend will not be granted.

Official Proceedings Privilege. A privileged publication or broadcast is one made in the proper discharge of an official duty. Civ. Code § 47(a). The privilege also applies in “any (1) legislative proceeding, (2) judicial

proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...” Civ. Code § 47(b).

Each of the three cases cited by Defendants involved whether the privilege applies to the statements made by the individuals making the complaint, not the response from the agency being complained to. As far as the privilege under § 47(a) is concerned, Defendants have failed to establish which statements are being considered a broadcast or publication.

Civil Code section 47, subdivision (b) provides that any publication made in any “judicial proceeding” or “in any other official proceeding authorized by law” is privileged. The privilege is designed to provide the utmost freedom of communication between citizens and public authorities whose responsibility is to investigate wrongdoing. (*Brody v. Montalbano* (1978) 87 Cal. App. 3d 725, 733 [151 Cal. Rptr. 206].) Accordingly, communications to an official agency intended to induce the agency to initiate action are part of an “official proceeding.” (*Id.* at p. 732.) Thus it is well settled that complaints to school authorities about a teacher or principal in the performance of his or her official duties are privileged. (*Id.* at pp. 731–735; *Martin v. Kearney* (1975) 51 Cal. App. 3d 309 [124 Cal. Rptr. 281].)

Lee v. Fick (2005) 135 Cal. App. 4th 89, 96.

Accordingly, investigations about a teacher or principal are official proceedings within the meaning of Civ. Code § 47(b). Defendants argue that the statements made by Defendant Bunton during the meeting in which the complaint was made, as well as statements made by any defendant in the investigation and eventual determination are all part of the official proceeding. Based on the allegations in the FAC, this appears to be the case. Each of the three causes of action alleged are premised on statements made during an official proceeding that are subject to privilege. Therefore, the Demurrer to the entirety of the FAC is **SUSTAINED** on that ground.

Discretionary Immunity. “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” Gov. Code § 820.2.

“The immunity for discretionary acts under section 820.2 ‘confers immunity only with respect to those “basic policy decisions” which have been committed to coordinate branches of government, and does not immunize government entities from liability for subsequent ministerial actions taken in the implementation of those basic policy decisions [citation]. This distinction is sometimes characterized as that between the “planning” and the “operational” levels of decision-making [citation].’ [Citation.]

San Mateo Union High School Dist. v. County of San Mateo (2013) 213 Cal. App. 4th 418, 433-434.

Neither party provided a copy of District Policy 1312.1, which the Court could have taken judicial notice of. Therefore, the Court is unable to determine if the acts taken in receiving, investigating, and making a determination on the Complaint were discretionary in nature, or merely ministerial acts in following District Policy 1312.1. Because Defendants are the party claiming immunity, it is Defendants’ burden to show that discretionary immunity applies to each of the acts alleged against the individual Defendants, which Defendants did not do. The Demurrer on the basis of discretionary immunity is **OVERRULED**.

Lack of Severe/Outrageous Conduct or Serious Emotional Distress. Both IIED and NIED contain an element that the defendant’s conduct was outrageous. The Demurrer to the NIED claim has already been sustained without leave to amend.

The elements of the tort of intentional infliction of emotional distress are: “(1) extreme and

outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . .' Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209 [185 Cal.Rptr. 252, 649 P.2d 894].) The defendant must have engaged in "conduct intended to inflict injury or engaged in with the realization that injury will result." (*Id.* at p. 210.)

It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.

Christensen v. Superior Court (1991) 54 Cal. 3d, 868, 903.

A defendant's conduct is "outrageous" when it is so "“extreme as to exceed all bounds of that usually tolerated in a civilized community.”” (*Potter*, at p. 1001.) And the defendant's conduct must be "“intended to inflict injury or engaged in with the realization that injury will result.”

Hughes v. Pair (2009) 46 Cal. 4th 1035, 1051.

The alleged conduct, as directed at Plaintiff himself as opposed to his minor child, does not exceed all bounds of that usually tolerated in a civilized community. The elements of an IIED claim are not properly alleged. The Demurrer to the First Amended Complaint is **SUSTAINED** on the ground of missing elements. Plaintiff has failed to allege any facts that would change the outcome of the Demurrer on this ground. Absent additional facts being provided at the time of hearing, leave to amend will not be granted.

Failure to Identify Enactment. The Third Cause of Action is against Defendant SUHSD only. Plaintiff alleges that District Policy 1312.1 is a formally adopted regulation qualifying as a mandatory enactment under Gov. Code § 815.6. "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." Gov. Code § 815.6. "Enactment" means a constitutional provision, statute, charter provision, ordinance or regulation." Gov. Code § 810.6.

The term 'enactment' as used in Government Code section 815.6 means 'a constitutional provision, statute, charter provision, ordinance or regulation.' (Gov. Code, § 810.6.) 'This definition is intended to refer to all measures of a formal legislative or quasi-legislative nature.' [Citation.] The term 'regulation,' as used in Government Code section 810.6 means 'a rule, regulation, order or standard, having the force of law, adopted . . . as a regulation by an agency of the state pursuant to the Administrative Procedure Act [Act].' [Citation.] [P] 'The . . . Act rulemaking provisions apply to *most state agencies* and their regulations. [Citations.] There are significant exceptions, however, both as to the agencies and types of regulations covered. [Citation.]" [Citations.] For instance, the Act does not apply to '[a] regulation that relates only to the internal management of the state agency' or '[a] regulation that is directed to a specifically named person or to a group of persons and does not apply generally throughout the state.'"

County of Los Angeles v. Superior Court (2002) 102 Cal. App. 4th 627, 638.

Section 815.6 has three discrete requirements which "must be met before governmental entity liability may be imposed under Government Code section 815.6: (1) an enactment must impose a mandatory duty; (2) the enactment must be meant to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered." (*Ellerbee v. County of Los Angeles, supra*, 187 Cal.App.4th 1206, 1215.

Again, neither party provided a copy of District Policy 1312.1. Plaintiff alleges that the policy imposed a mandatory duty in without specifically naming the mandatory duty. Element two is not alleged in the FAC and element three is not alleged as to Plaintiff himself. Therefore, Plaintiff has failed to provide sufficient facts showing that District Policy 1312.1 created an enactment within the meaning of Gov. Code § 810.6. Without an enactment, the violation of Gov. Code § 815.6 does not survive demurrer. The Demurrer to the Third Cause of Action is **SUSTAINED** on that ground.

The Demurrer is **SUSTAINED** and **OVERRULED** as noted above. While it appears that the Third Cause of Action could potentially be cured by amendment including District Policy 1312.1, that would not sure the issue of the official proceedings privilege. Absent specific facts provided by Plaintiff at the time of the hearing that could cure the defects, the Court does not intend to grant leave to amend. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.

WAGNER VS. LLOYD

CASE NUMBER: CVCV21-0198602

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to show Cause Re: Sanctions issued on July 30, 2026 to Defendant Jeff Lloyd, in pro per, for failure to appear on July 20, 2026 and June 1, 2026 as previously ordered by the Court. The June 1, 2026 hearing date was set in the Statement of Decision which was mailed to both parties on April 8, 2026. The July 20, 2026 hearing date was set on June 1, 2026, however, Defendant was not present and there is no evidence before the Court that notice of the July 20, 2026 hearing date was given to Defendant. The Court notes that the Order to Show Cause mailed to Defendant was returned as undeliverable. The Court further notes that while Defendant has not changed his address of record from the address used to mail the Order to Show Cause, Defendant attempted to file documents containing a different address on March 20, 2026. That address is 12280 Skyline View Lane, Brighton UT 84121. Absent an appearance by Defendant today, hearing on the Order to Show Cause will be continued to **Monday, November 9, 2026 at 8:30 a.m. in Department 63.** The clerk is directed mail a copy of today's minutes as well as the Order to Show Cause to Defendant at the address listed in this tentative ruling. Defendant is reminded of the importance of keeping the Court apprised of a valid mailing address by filing and serving a Notice of Change of Address (Judicial Council Form MC-040) any time there is a change of address.

9:00 a.m. – Review Hearings

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for confirmation of transfer or uncashed checks to the State Controller's Unclaimed Property Fund. A declaration was filed providing confirmation that the funds were transferred on August 7, 2026. The Court considers the settlement to be complete. The clerk is directed to close the file and vacate any future dates.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.

CASE NUMBER: 26CV-0209907

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this as a Plan III matter and notes that the parties have discussed trial dates in August or September 2027. All parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing to determine if the parties can all agree on a trial date. **An appearance is necessary on today's calendar.**

BARNETT, ET AL. VS. NORTH VALLEY DEVELOPMENTAL SERVICES, INC.

CASE NUMBER: 24CV-0204885

This matter is on calendar for review regarding status of settlement. At the last hearing on July 20, 2026, the parties informed the Court that a settlement had been reached. The matter was continued to today and the parties were ordered to file a status statement at least five days prior to today's hearing. The status statement was filed on September 23, 2026, which is only two court days prior to the hearing. The matter settled in June of 2026 and the long form settlement agreement has not been completed. The Court is concerned regarding the delay in finalizing the settlement and filing a motion for preliminary approval, however, the Court will grant an additional 90 days as requested by the parties. The matter is continued to **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for status. If a motion for preliminary approval has not been filed, a joint status report is due five court days prior to the hearing. **No appearance is necessary on today's calendar.**

BERG VS. GRIFFIN

CASE NUMBER: 25CV-0208647

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than March 9, 2027. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

BURROWS VS. GARRIGUS, ET AL.

CASE NUMBER: 24CV-0205757

This matter is on calendar for review regarding status of appraisal. On June 15, 2026, the Court ordered the parties to file status statements at least five court days prior to today's hearing. Nothing has been filed. **An appearance is necessary on today's calendar.**

COTTONWOOD ESTATES, LLC VS. LASCALA

CASE NUMBER: 26CVG-00999

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ELLIOTT VS. PRIME HEALTHCARE SERVICES-SHASTA LLC

CASE NUMBER: 25CV-0208201

This matter is on calendar for review regarding status of arbitration. The parties were ordered to file status statements at least five court days prior to today's hearing. No status statements have been filed. **An appearance is necessary on today's calendar.**

FCS ADVISORS, LLC VS. SMOKIN JOES BBQ, ET AL.

CASE NUMBER: 24CV-0204862

This matter is on calendar for review regarding status of subpoena duces tecum documents for the purpose of a judgment debtor examination. Plaintiff did not file a status statement informing the Court whether the documents had been provided, however, the judgment debtor examinations were vacated at the request of Plaintiff. **An appearance is necessary on today's calendar. If an appearance is not made, the matter will be dropped from calendar.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

This matter is on calendar for review regarding status of the case. The Court notes that this matter is on this

morning's Law & Motion calendar for hearing on a Motion for Preliminary Approval. The review hearing is advanced to 8:30 a.m. and the Court will set a new review date consistent with the next date selected at 8:30 a.m. **An appearance is necessary at 8:30 a.m. today.**

JENSEN VS. DIRECTOR, DEPARTMENT OF MOTOR VEHICLES

CASE NUMBER: 26CV-0211334

This matter is on calendar for review regarding status of the Writ. The Court notes that Petitioner submitted a Request for Dismissal on September 21, 2026. However, dismissal was not entered because Item 3.a.(3) was checked and there was no signature from Respondent. This matter has not been dismissed and there is a proof of service on file reflecting service on Respondent. On August 4, 2026, the Court issued an Order requiring the parties to meet and confer and provide the Court with a proposed briefing schedule at least five court days prior to today's hearing. This has not been filed. The parties are ordered to meet and confer regarding a proposed briefing schedule and status of the administrative record and be prepared to address both at today's hearing. **An appearance is necessary on today's calendar.**

JONES, ET AL. VS. VERCAMMEN

CASE NUMBER: 25CV-0208460

This matter is on calendar for review regarding status of service and responsive pleading. A Proof of Service of Summons was filed on August 3, 2026 indicating that Defendant was served through counsel on April 8, 2026. The Court notes that on May 13, 2026, Defendant filed, through counsel, a Declaration of Demurring Party in Support of Automatic Extension. Defendant has still not filed a responsive pleading. This declaration was served on Plaintiff which gave "the plaintiff written notice of appearance." CCP § 1014. It is unclear why Defendant has not filed a responsive pleading despite being required to do so months ago. **An appearance is necessary on today's calendar.**

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

This matter is on calendar regarding status of class notice. The parties were ordered to file a joint status statement on or before September 18, 2026. This was not filed. The Court notes that the Motion for Class Certification was filed on April 20, 2026, which was over five months ago. Neither party filed a status statement informing the Court of the status of the class data or class notice. **An appearance is necessary on today's calendar.**

OWENS VS. CALIFORNIA DEPARTMENT OF REHABILITATION

CASE NUMBER: 22CV-0200870

This matter is on calendar for review regarding status of settlement. Defendant filed a status statement indicating that the agreement has been signed and settlement check issued. The matter is continued to **Monday, November 23, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The date will be vacated if a dismissal is on file prior to the next hearing date. **No appearance is necessary on today's calendar.**

THE MCCONNELL FOUNDATION VS. GHEEN BUILDERS, INC., ET AL.

CASE NUMBER: 25CV-0208455

This matter is on calendar for status of service and responsive pleading. On July 27, 2026, the Court noted in its tentative ruling that the matter was not at issue. There is no Proof of Service of Summons on file for Cross-Defendants Joseph Craig Nixt or Harbor Roofing, Inc. The Cross-Complaint was filed on May 6, 2026 and all Cross-Defendants should have been served within 30 days. CRC 3.110(c). The matter was continued to today for status of service and responsive pleading and, if appropriate, trial setting. Plaintiff was ordered to file status statement no less than five court days prior to today's hearing and did not do so. The Court expects that Cross-Complainant Gheen Builders, Inc. will be present to explain the delay. **An appearance is necessary on today's calendar.**

TITTLE, ET AL. VS. MCKENZIE, ET AL.

CASE NUMBER: 25CV-0206776

This matter is on calendar for review regarding status of judgment. On May 19, 2026, a verdict in favor of Plaintiff was reached in a jury trial. Plaintiff was directed to prepare a judgment. The originally set review hearing was continued following a stipulation of the parties who indicated that they were working toward a resolution without the need for further proceedings. No judgment has been submitted and no status statements were filed. **An appearance is necessary on today's calendar.**

WAGNER VS. LLOYD

CASE NUMBER: CVCV21-0198602

This matter is on calendar for review regarding status of the case. An Interlocutory Judgment was entered on September 24, 2026 and a referee was appointed. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

WESLEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0207455

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than April 6, 2027. Both parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**